

25VECV03111 25VECV03111

County: los-angeles

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Case Number: 25VECV03111 Hearing Date: August 5, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Dilcia

Jaqueline Montes,

Plaintiff.

v.

Joe

Dog Grooming, Inc, et al

Defendants.

Case Number Department

25VECV03111 107

COURT'S

[TENTATIVE] ORDER RE:

Motion
for Terminating Sanctions

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

Plaintiff

Dilcia Jaqueline Montes ("Plaintiff") was employed by Defendant Joe Dog Grooming, Inc. ("Defendant") as a dog groomer. (Complaint ¶¶ 2, 4, 10.) Plaintiff was sexually harassed by her coworker, Edwin Garcia. (Complaint ¶ 11.) Plaintiff experienced further harassment when she became pregnant. (Complaint ¶ 12.) Defendant's owner, Joel Sosa ("Sosa"), leveraged Plaintiff's pregnant condition by offering Plaintiff an ultimatum "if Plaintiff engaged in sexual intercourse with him, her employment would be secure." (Complaint ¶ 12.) "Fearing the imminent loss of her job and the severe difficulty of finding new employment while pregnant, Plaintiff felt coerced into complying with Mr. Sosa's demand." (Complaint ¶ 12.)

Plaintiff

returned to work after her maternity leave. (Complaint ¶ 13.) Plaintiff continued to face sexual harassment from Garcia, Sosa, and other employees. (Complaint ¶ 13.) Sosa also shared videos of Plaintiff engaged in sexual intercourse with Plaintiff's coworkers. (Complaint ¶ 14.)

In

or around March 2024, Sosa told Plaintiff he intended to terminate her, and she had one month to find new employment. (Complaint ¶ 15.) On or around March 28, 2024, before the one month expired, Plaintiff was terminated by Sosa's wife, Suheil, when Suheil discovered Sosa engaged in sexual intercourse with Plaintiff. (Complaint ¶ 16.)

On

June 4, 2025, Plaintiff filed a complaint against Defendant and Does 1 to 50, alleging causes of action for: (1) sexual harassment; (2) sex/gender discrimination in violation of Gov. Code section 12940 et seq.; (3) race/color/national origin discrimination in violation of Gov. Code section

12940 et seq.; (4) failure to prevent discrimination in violation of Gov. Code section 12940(k); (5) retaliation in violation of Gov. Code section 12940(h); (6) wrongful termination; (7) meal and rest break violations of Labor Code section 226.7; (8) failure to pay overtime & wages; (9) failure to pay all compensation at termination; waiting time penalties; (10) failure to provide employment records in violation of Cal. Labor Code section 1198.5 et seq.; (11) violation of Business & Professions Code section 17200 et seq.

On July 2, 2026, Plaintiff filed an amendment to complaint identifying Doe 1 as Sosa.

On July 2, 2026, Plaintiff filed a motion for terminating sanctions, or in the alternative issue, evidentiary, and monetary sanctions, for spoliation of evidence (the "Motion"). On July 23, 2026, Defendant filed an opposition. On July 29, 2026, Plaintiff filed a reply.

II. LEGAL STANDARD

Under Code of Civil Procedure section 2023.030,

To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

(a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the

one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(b) The court may impose an issue sanction

ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses.

(c) The court may impose an evidence sanction

by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence.

(d) The court may impose a terminating

sanction by one of the following orders:

(1) An order striking out the pleadings

or parts of the pleadings of any party engaging in the misuse of the discovery process.

(2) An order staying further proceedings

by that party until an order for discovery is obeyed.

(3) An order dismissing the action, or

any part of the action, of that party.

(4) An order rendering a judgment by

default against that party.

(e) The court may impose a contempt

sanction by an order treating the misuse of the discovery process as a contempt of court.

(f)(1) Notwithstanding subdivision (a),

or any other section of this title, absent exceptional circumstances, the court shall not impose sanctions on a party or any attorney of a party for failure to provide electronically stored information that has been lost, damaged, altered, or overwritten as the result of the routine, good faith operation of an electronic information system.

(2) This subdivision shall not be construed to alter any obligation to preserve discoverable information.

Code of Civil

Procedure 2023.010, subdivision (f) defines a misuse of the discovery process to include the "fail[ure] to respond or to submit to an authorized method of discovery."

"One serious

form of discovery abuse is the spoliation of evidence, which is defined as the destruction or alteration of relevant evidence or the failure to preserve evidence for another party's use in pending or future litigation." (Victor Valley Union High School District v. Superior Court ("Victory Valley") (2023) 91 Cal.App.5th 1121, 1139.) Quoting the Supreme Court of California's decision in Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1, 8, in Victor Valley Court of Appeal also stated: "No one doubts that the intentional destruction of evidence should be condemned.

Destroying evidence can destroy fairness and justice, for it increases the risk of an erroneous decision on the merits of the underlying cause of action. Destroying evidence can also increase the costs of litigation as parties attempt to reconstruct the destroyed evidence or to develop other evidence, which may be less accessible, less persuasive, or both." (Id.)

Destroying evidence can lead to an "evidentiary inference that evidence which one party has destroyed or rendered unavailable was unfavorable to that party."

(Id.) "In addition, 'destroying evidence in response to a discovery request after litigation has commenced would surely be a misuse of discovery within the meaning of former section 2023, as would such destruction in anticipation of a discovery request,' and the available sanctions to remedy that abuse include such 'potent' measures as 'monetary sanctions, contempt sanctions, issue sanctions ordering that designated facts be taken as established or precluding the offending party from supporting or opposing designated claims or defenses, evidence sanctions prohibiting the offending party from introducing designated matters into evidence, and terminating sanctions that include striking part or all of the pleadings, dismissing part or all of the action, or granting a default judgment against the offending party.'" (Id. at pp. 1139-1140, brackets removed.)

The "party

moving for discovery sanctions based on the spoliation of evidence must make an initial prima facie showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party's ability to establish an essential element of his claim or defense." (Williams v. Russ (2008) 167 Cal.App.4th 1215, 1227.) Once the moving party meets their burden, the burden shifts to the responding party to prove the moving party did not suffer any prejudice. (Id.) "Discovery sanctions are intended to remedy discovery abuse, not to punish the offending party. Accordingly, sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct." (Id. at p. 1223.)

III.

DISCUSSION

Plaintiff

moves for terminating sanctions because Defendant admitted in its discovery responses that Sosa made a video recording of a "personal encounter" with Plaintiff but the original and copy had since been deleted, that Sosa deleted text message communications with Plaintiff, and Defendant implemented no litigation hold. (Motion pp. 2, 4.) Alternatively, Plaintiff moves for issue sanctions, evidentiary sanctions, adverse inference instructions, and monetary sanctions. (Motion p. 2.)

In

opposition, Defendant argues its supplemental discovery responses clarified that the text messages were automatically deleted in April 2024. (Opposition pp. 4-5.) Defendant states that "Plaintiff had these supplemental responses before filing this Motion" but neither Plaintiff's Motion nor Plaintiff's counsel's declaration discusses these responses. (Opposition pp. 4-5.) Defendant argues Sosa did not receive the November 14, 2024, letter and Plaintiff had equal access to the text messages and video. (Opposition pp. 5-6.) Thus, Defendant argues Plaintiff has not shown willful, bad-faith, post-notice destruction. (Opposition pp. 7-8.) Defendant also argues Plaintiff cannot show prejudice because Plaintiff had equal access to the evidence. (Opposition pp. 11-12.)

In

reply, Plaintiff states she did not receive the supplemental responses until

after she filed the Motion. (Reply pp. 2-3.) Plaintiff further states that Defendant did not supplement its responses to Special Interrogatory Nos. 17, 18, 23, and 12, which state communications with Plaintiff were destroyed after November 14, 2024, Sosa's phone was the mechanism of destruction, a recording was destroyed after November 14, 2024, and Sosa was the person who destroyed the communications. (Reply pp. 3-4.) Plaintiff also argues Defendant does not deny receiving the CRD Notice. (Reply p. 6.) Finally, Plaintiff argues that equal access to lost communication bears on the degree of prejudice but does not eliminate Defendant's duty to preserve evidence. (Reply p. 10.) Plaintiff states Defendant's claim Plaintiff has the video is "squarely contradicted by Plaintiff's Complaint, which alleges a nonconsensual recording of a coerced encounter, made and shared without Plaintiff's knowledge." (Reply p. 10.)

Plaintiff's

counsel submits a declaration stating counsel's office mailed Defendant a pre-litigation demand letter on November 14, 2024, that demanded Defendant preserve documents and electronically stored information. (Salem Declaration ¶ 3.) Plaintiff's counsel also states that on that same day, the California Civil Rights Department ("CRD") issued Plaintiff a right-to-sue notice (the "CRD Notice") and Plaintiff's counsel's office served the CRD Notice on Defendant by mail. (Salem Declaration ¶ 2.) Plaintiff's counsel cites Special Interrogatories, Set One ("SROG") Nos 11, 12, 13, 15, 17, 18, 22, and 23. (Salem Declaration ¶ 9.) Plaintiff also cites Defendant's supplemental response to Form Interrogatory No. 12.4 and Defendant's supplemental responses to Requests for Production ("RFPs") Nos. 54 and 55. (Salem Declaration ¶¶ 10-11.)

Special

Interrogatory No. 10 states: "State each category of COMMUNICATION with PLAINTIFF that YOU contend was lost or destroyed (e.g., text messages, emails, voicemails, direct messages)." (Salem Declaration Ex. C pdf p. 38.)

Defendant

responded: "Text message and telephone calls." (Salem Declaration Ex. C pdf p. 38.)

Special

Interrogatory No. 11 states: "For each category identified in response to Special Interrogatory No. 10, state the date or date range on which those COMMUNICATIONS were DESTROYED." (Salem Declaration Ex. C pdf p. 38.)

Defendant

responded: "Texts were deleted – his messages automatically delete after certain amount of days." (Salem Declaration Ex. C pdf p. 38.)

Special

Interrogatory No. 12 states: "For each category identified in response to Special Interrogatory No. 10, identify the person who DESTROYED those COMMUNICATIONS or caused them to be DESTROYED."
(Salem Declaration Ex. C pdf p. 38.)

Defendant

responded: "Joel Sosa." (Salem Declaration Ex. C pdf p. 38.)

Special

Interrogatory No. 13 states: "For each category identified in response to Special Interrogatory No. 10, state whether the destruction was intentional."
(Salem Declaration Ex. C pdf p. 38.)

Defendant

responded: "No, his phone automatically deletes messages after a certain amount of days." (Salem Declaration Ex. C pdf p. 38.)

Special

Interrogatory No. 15 states: "State whether YOU implemented a litigation hold or document preservation directive after November 14, 2024." (Salem Declaration Ex. C pdf p. 39.)

Defendant

responded: "No." (Salem Declaration Ex. C pdf p. 39.)

Special

Interrogatory No. 17 states: "State whether any COMMUNICATION with PLAINTIFF was DESTROYED after November 14, 2024." (Salem Declaration Ex. C pdf p. 39.)

Defendant

responded: "Yes[.]" (Salem Declaration Ex. C pdf p. 39.)

Special

Interrogatory No. 18 states: "If any COMMUNICATION with PLAINTIFF was DESTROYED after November 14, 2024 as stated in response to Special Interrogatory No. 17,

identify the person who DESTROYED it.” (Salem Declaration Ex. C pdf p. 39.)

Defendant

responded: “Joel Sosa’s phone deletes messages automatically after a certain amount of days.” (Salem Declaration Ex. C pdf p. 39.)

Special

Interrogatory No. 22 states: “If Joel Sosa made, possessed, or had access to any RECORDING as stated in response to Special Interrogatory No. 19, state what happened to each such RECORDING.” (Salem Declaration Ex. C pdf p. 40.)

Defendant

responded: “Deleted off his phone[.]” (Salem Declaration Ex. C pdf p. 40.)

Special

Interrogatory No. 23 states: “State whether any RECORDING was DESTROYED after November 14, 2024.” (Salem Declaration Ex. C pdf p. 40.)

Defendant

responded: “Yes[.]” (Salem Declaration Ex. C pdf p. 40.)

Form

Interrogatory No. 12.4 states:

Do YOU OR ANYONE

ACTING ON YOUR BEHALF know of any photographs, films, or videotapes depicting any place, object, or individual concerning the INCIDENT or plaintiff’s injuries? If so, state:

(a) the number of
photographs or feet of film or videotape;

(b) the places,
objects, or persons photographed, filmed, or videotaped;

(c) the date the
photographs, films, or videotapes were taken;

(d) the name, ADDRESS,

and telephone number of the individual taking the photographs, films, or videotapes; and

(e) the name, ADDRESS, and telephone number of each PERSON who has the original or a copy of the photographs, films, or videotapes.

(Salem Declaration Ex. D pdf p. 47.)

Defendant

initially responded: "Responding Party has conducted a diligent search and a reasonable inquiry in an effort to comply with this demand. Responding Party is unable to comply because the requested documents have been lost or destroyed, and are no longer in Responding Party's possession, custody, or control."

(Salem Declaration Ex. D pdf p. 47.)

Defendant's

supplemental response stated:

(a) Responding Party

knows of two electronic videos, and one or more photographs

(b) One video depicts

a personal encounter between Plaintiff Dilcia Montes and Defendant Joel Sosa. The second video depicts a verbal exchange in the workplace with Dilcia Montes, the wife of Joel Sosa, Sudjai Yonjan, and another female employee off camera translating from Plaintiff's statements from Spanish to English for Sudjai Yonjan. Responding Party is also aware of one or more pictures of the personal encounter taken by Montes as well as another video of the exchange in the workplace recorded by Montes herself.

(c) The video of the

personal encounter and presumably the photographs taken by Plaintiff were created in October 2024. The videos in the workplace were taken subsequently on or around the time Plaintiff left the workplace.

(d) The video of the

private encounter was taken by Defendant Joel Sosa who can be contacted through counsel, The photographs of the private encounter were taken by Plaintiff who

can be contacted through counsel. The video at the workplace was taken by a female employee of Responding Party who did not appear in the video and cannot be identified. Responding Party believes that this person can be identified from video of the same workplace incident taken by Plaintiff.

(e) The original copy of the video of the private encounter was in the possession of Defendant Joel Sosa and his wife, Sudjai Yonjan, who made a video copy; both can be contacted through Defendant's counsel. Both the original video and copy have since been deleted. The photographs of the private encounter and a video of the workplace incident would be in the possession of Plaintiff. The other video of the workplace incident is in possession of Defendants and their counsel and has been produced in discovery.

(Salem Declaration Ex. D pdf pp. 47-48.)

RFP

No. 54 states: "Produce any and all DOCUMENTS reflecting or relating to any and all written COMMUNICATIONS from DEFENDANT to PLAINTIFF including, but not limited to, emails, text messages, instant/direct messages memoranda, and/or letters." (Salem Declaration Ex. E pdf p. 53.)

Defendant

initially responded: "Responding Party has conducted a diligent search and a reasonable inquiry in an effort to comply with this demand. Responding Party is unable to comply because the requested documents have been lost or destroyed, and are no longer in Responding Party's possession, custody, or control."

(Salem Declaration Ex. E pdf pp. 53-54.)

Defendant's

supplemental response stated: "Responding Party has conducted a diligent search and a reasonable inquiry in an effort to comply with this demand. Responding Party is unable to comply because any DOCUMENTS reflecting or relating to written COMMUNICATIONS have been deleted or destroyed, and therefore are no longer in Responding Party's possession, custody, or control."

(Salem Declaration Ex. E pdf p. 54, original **bolding**.)

RFP

No. 55 states: "Produce any and all DOCUMENTS reflecting or relating to any and

all written COMMUNICATIONS from PLAINTIFF to DEFENDANT including, but not limited to, emails, text messages, instant/direct messages memoranda, and/or letters.” (Salem Declaration Ex. E pdf p. 54.)

Defendant

initially responded: “Responding Party has conducted a diligent search and a reasonable inquiry in an effort to comply with this demand. Responding Party is unable to comply because the requested documents have been lost or destroyed, and are no longer in Responding Party’s possession, custody, or control.” (Salem Declaration Ex. E pdf p. 54.)

Defendant’s

supplemental response stated: “Responding Party has conducted a diligent search and a reasonable inquiry in an effort to comply with this demand. Responding Party is unable to comply because any DOCUMENTS reflecting or relating to written COMMUNICATIONS have been deleted or destroyed, and therefore are no longer in Responding Party’s possession, custody, or control.” (Salem Declaration Ex. E pdf p. 54, original bolding.)

Plaintiff

relies on Plaintiff’s counsel’s declaration and Defendant’s discovery responses to argue Defendant was on notice of the litigation by November 14, 2024, but failed to implement a litigation hold for the text messages, and the text messages and recording were subsequently deleted.

In

opposition, Defendant submits a declaration by Sosa. Sosa verified Defendant’s discovery responses. (Salem Declaration ¶ 8.)

Sosa

states he did not receive Plaintiff’s preservation letter dated November 14, 2024. (Sosa Declaration ¶ 12.)

Sosa

also states his first language is Spanish and has difficulty understanding legal terms and written discovery requests. (Sosa Declaration ¶ 3.) Sosa states that “[w]hen Defendant’s initial responses to Plaintiff’s Special Interrogatories were being prepared, a litigation paralegal from defense counsel’s office read the interrogatories to me over the telephone in Spanish so that I could provide information for the responses. I answered based on my

understanding of the questions as they were translated and explained to me during that call.” (Sosa Declaration ¶ 4.) Sosa further states he believed he answered truthfully and did not intend to state he first deleted the text messages or recordings after November 14, 2024. (Sosa Declaration ¶ 5.) Sosa states that:

As translated to me over the phone, I understood Special Interrogatory Nos. 17 and 23 to be asking whether the communications and recordings were still gone or still unavailable after November 14, 2024. Because the text messages were automatically deleted in April 2024 and I could no longer recover them, I answered “Yes” based on the fact they were gone and remained unavailable.

(Sosa Declaration ¶ 9.) Finally, Sosa states Defendant served supplemental responses clarifying the messages were deleted in April 2024. (Sosa Declaration ¶ 24.)

Supplemental responses to Special Interrogatory Nos. 3, 9, 11, and 13 are attached to Sosa's declaration. (Sosa Declaration ¶ 6; Ex. A pdf pp. 8-10.)

Defendant's supplemental response to Special Interrogatory No. 11 stated: “Text messages were deleted in April 2024.” (Sosa Declaration Ex. A pdf p. 10.) Defendant's supplemental response to Special Interrogatory No. 13 likewise states: “Text messages were deleted in April 2024.” (Sosa Declaration Ex. A pdf p. 10.)

As an initial matter, the court is not persuaded Plaintiff intentionally omitted reference to Defendant's supplemental Special Interrogatory responses. The Motion was filed with the court on July 2, 2026, at 3:45 pm. (Motion p. 1.) Plaintiff's counsel also submits a declaration with the reply with the Motion's service email attached, showing Plaintiff served Defendant with the Motion by email on July 2, 2026, at 1:02 pm. (Salem Reply Declaration ¶ 2; Ex. A pdf p. 6.) Plaintiff's counsel also submits the email with Defendant's supplemental discovery responses attached, which shows Defendant served Plaintiff with the supplemental responses on July 2, 2026, at 6:38:03 pm. (Salem Reply Declaration ¶ 3; Ex. B pdf p. 8.) This evidence shows Plaintiff did not receive Defendant's supplemental responses until hours after Plaintiff served Defendant with the Motion and filed the Motion with the court.

“[T]he

safe-harbor provision of section 2023.030(f) does not shield a party from sanctions for the spoliation of electronic evidence if the evidence was altered or destroyed when the party was under a duty to preserve the evidence. The duty to preserve relevant evidence is triggered when the party is objectively on notice that litigation is reasonably foreseeable, meaning litigation is probable and likely to arise from an incident or dispute and not a mere possibility.” (Victor Valley, *supra*, 91 Cal.App.5th at p. 1133.)

Sosa

states in his declaration he did not receive the November 14, 2024, “preservation demand letter.” (Sosa Declaration ¶ 12.) Sosa does not directly address the CRD Notice and does not state he did not receive the CRD Notice. In contrast, Plaintiff’s counsel states their office sent the CRD Notice on November 14, 2024. (Salem Declaration ¶ 2.) The CRD Notice and the proof of service are attached to Plaintiff’s counsel’s declaration. (Salem Declaration ¶ 2; Ex. A pdf pp. 9-17.) The CRD Notice refers to Plaintiff’s discrimination allegations and directly refers to Sosa sharing intimate videos of Plaintiff. (Salem Declaration Ex. A pdf pp. 12-14.) The court finds the CRD Notice triggered Defendant’s duty to preserve relevant evidence.

Plaintiff

further argues the duty to preserve was triggered before November 2024. (Reply pp. 7-8.) The court notes there is an absence of evidence submitted with the Motion showing Defendant had a duty to preserve evidence before November 2024. Plaintiff relies on allegations in Plaintiff’s complaint to show that Sosa’s wife “terminated Plaintiff’s employment immediately after discovering the relationship between Plaintiff and Mr. Sosa, using racial slurs and threatening to report Plaintiff to immigration authorities, in the midst of a disputed final-paycheck dispute” and “[a] reasonable business owner aware of those circumstances would objectively anticipate the probability of litigation well before any letter arrived seven months later.” (Reply p. 7.) But allegations in a complaint are not evidence.

Thus,

the court concludes that, based on the evidence submitted with the Motion, Defendant’s duty to preserve evidence was triggered in November 2024. Taken together, Defendant’s discovery and supplemental discovery responses

indicate the text messages between Plaintiff and Sosa were automatically deleted in April 2024. (Sosa Declaration Ex. A pdf p. 10; Salem Declaration Ex. C pdf p. 38.) Thus, deletion occurred before Defendant was under a duty to preserve the text messages.

Discovery

sanctions are intended to be remedial, and “should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery. . .” (Williams v. Russ, supra, 167 Cal.App.4th at p. 1223, italics added.) The moving party must show “the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party’s ability to establish an essential element of his claim or defense.” (Id. at p. 1227.) The burden then shifts to the responding party to prove the moving party did not suffer any prejudice. (Id.)

In Williams

v. Russ, supra, 167 Cal.App.4th at p. 1222, the trial court found spoliation that was highly prejudicial because only part of a client file was copied, while the remainder was destroyed.

As

for the video recording, Defendant’s supplemental response to Form Interrogatory No. 12.4 indicates Sosa and his wife possessed a video of the “private encounter” and Sosa’s wife made a copy. (Salem Declaration Ex. D pdf p. 48.) The response further states “Both the original video and copy have since been deleted.” (Salem Declaration Ex. D pdf p. 48.) Special Interrogatory No. 23 states: “State whether any RECORDING was DESTROYED after November 14, 2024.” (Salem Declaration Ex. C pdf p. 40.) Defendant responded: “Yes.” (Salem Declaration Ex. C pdf p. 40.) Defendant has not submitted any evidence showing Defendant supplemented its response to Special Interrogatory No. 23. (Sosa Declaration Ex. A pdf pp. 8-10.) Thus, it appears that Defendant destroyed the video recording after Defendant was under a duty to preserve the video.

However,

Sosa states in his declaration that “[m]y understanding is that Plaintiff also had her own access to that video. In my prior discovery responses, Defendant stated that Plaintiff had a copy of the video, and that the video was shown to Plaintiff, to me, and to my wife.” (Sosa Declaration ¶ 17.) Plaintiff submits no evidence with the Motion disputing this statement.

In reply,

Plaintiff argues that “Defendant’s ‘equal access’ theory depends entirely on its own disputed account – that Plaintiff requested the recording and had a copy of her own” and “[t]hat account is squarely contradicted by Plaintiff’s Complaint, which alleges a nonconsensual recording of a coerced encounter, made and shared without Plaintiff’s knowledge.” (Reply p. 10.) Allegations in a complaint are not evidence. Further, Plaintiff alleges in the complaint that Sosa “maliciously shared intimate videos of Plaintiff engaged in sexual intercourse with her coworkers. Plaintiff had no knowledge that he had recorded her during intercourse and never consented to him doing so. Plaintiff was further horrified and humiliated by the sharing of videos of her engaging in sexual intercourse.” (Complaint ¶ 14.) The court cannot locate an allegation in the complaint stating Plaintiff does not have the video. Sosa’s statement Plaintiff has a copy of the video is not contradicted by any evidence Plaintiff submits with the Motion. As such, the court concludes that Plaintiff has not shown Defendant’s deletion of the video had a substantial probability of damaging Plaintiff’s ability to establish an essential element of her claim and Defendant, at this stage, has met its burden of showing Plaintiff suffered no prejudice.

IV.

CONCLUSION

For
the foregoing reasons, the Motion is denied.

Dated: August 5, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court